IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Claim No. HT-2025-000612

B E T W E E N:

HALSTEAD AEROSPACE LIMITED

Claimant

- and -

FERNCLIFFE ALLOYS LIMITED

Defendant

ORDER

Before His Honour Judge Marriott KC sitting in the Technology and Construction Court at the Rolls Building, 7 Rolls Buildings, Fetter Lane, London EC4A 1NL

Made at the Case Management Conference on 11 June 2025

UPON hearing leading counsel for the Claimant and counsel for the Defendant

AND UPON the parties having agreed the following directions save as indicated

IT IS ORDERED THAT:

1. **Statements of case.** The Defendant do file and serve any Reply by 4pm on 9 July 2025 (if so advised).

2. **Disclosure.** Extended Disclosure shall be given on Model D in respect of the technical issues identified in the agreed List of Issues for Disclosure, and on Model C in respect of quantum. Disclosure Reports and a draft Disclosure Review Document having been exchanged, the parties shall give Extended Disclosure by 4pm on 3 October 2025.

3. **Factual evidence.** Each party do serve signed witness statements of fact by 4pm on 28 November 2025. Witness statements shall comply with PD 57AC.

4. **Expert evidence.** The parties have permission to rely on written expert evidence from one expert each in the field of metallurgy and materials engineering. Reports to be exchanged by 4pm on 30 January 2026. The experts shall meet without prejudice and file a joint statement of agreement and disagreement by 4pm on 27 February 2026. A joint inspection of retained samples shall take place on a protocol to be agreed by 4pm on 1 September 2025.

5. **ADR.** By 4pm on 13 March 2026 the parties shall attempt to settle the claim by mediation or other ADR. Any party which considers ADR to be inappropriate shall file a witness statement, not to be opened until the question of costs falls to be decided, setting out its reasons.

6. **Pre-trial review and trial.** There shall be a Pre-Trial Review in the week commencing 30 March 2026. The matter is listed for trial with a time estimate of 5 days in the first available window after 27 April 2026.

7. **Costs.** Costs of and occasioned by the Case Management Conference shall be costs in the case.

Dated 11 June 2025

BY THE COURT

[SEALED — TECHNOLOGY AND CONSTRUCTION COURT]